



POLICE DEPARTMENT

July 2, 2019

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In the Matter of the Charges and Specifications :

Case No.

- against - :

2017-17314

Police Officer Mark Calandra :

Tax Registry No. 922051 :

40th Precinct :

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Jordan Farnham, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Stuart London, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Mark Calandra, while off-duty and assigned to the 40th Precinct, on or about June 2, 2016, did wrongfully consume an intoxicant to the extent that said officer was unfit for duty.

P.G. 203-04, Page 1, Paragraph 1 FITNESS FOR DUTY – GENERAL
REGULATIONS

2. Said Police Officer Mark Calandra, while off-duty and assigned to the 40th Precinct, on or about June 2, 2016, did wrongfully consume an intoxicant to the extent that said officer was unfit for duty while armed.

P.G. 203-04, Page 1 ADDITIONAL DATA FITNESS FOR
DUTY - GENERAL REGULATIONS

3. Said Police Officer Mark Calandra, while off-duty and assigned to the 40th Precinct, on or about June 2, 2016, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer failed to identify himself to members of [REDACTED] Police Department upon their conducting an investigation.

P.G. 203-10, Page 1, Paragraph 5 CONDUCT PREJUDICIAL –
PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on April 24, 2019.

Respondent, through his counsel, entered pleas of Not Guilty to the subject charges. The

Department called Sergeant Sam Keenan and Police Officer Michael Lawrence from the

[REDACTED] Police Department and Lieutenant Thomas Devine. Respondent called Anthony

Tyndal as a witness and testified on his own behalf. A stenographic transcript of the trial record

has been prepared and is available for the Police Commissioner's review. Having reviewed all

the credible, relevant evidence in this matter, I find Respondent Not Guilty of the charged misconduct.

ANALYSIS

The following is a summary of the facts which are not in dispute. On June 2, 2016, Respondent

was present at the [REDACTED] Yacht Club with three friends: Person 1, Anthony

Tyndal and Person 2. Tyndal is a retired [REDACTED] police officer. Respondent referred to Person 1 as his girlfriend during his trial testimony.

At approximately 2130 hours, Sergeant Samuel Kenan and Police Officer Michael Lawrence of the [REDACTED] Police Department responded to the club to investigate a complaint of someone discharging a firearm at a drone flying overhead. Upon their arrival, they encountered Respondent and the other three individuals inside the clubhouse in a bar area. Police Officer Lawrence arrived at the location before Sergeant Kenan did and conducted a brief investigation. Upon Sergeant Kenan's arrival, he was briefed by Lawrence before he entered the premises.

Respondent admitted that during the time the police officers were present, he was armed (T. 165). He further admitted that he provided his name and date of birth in response to their inquiry but did not identify himself as a Member of Service (T. 163-164, 166). Finally, Respondent admitted that he had consumed one beer prior to their arrival and was on his second beer when he encountered them (T. 161).

At issue in this case is whether Respondent: (1) was unfit for duty; (2) consumed an intoxicant to the extent that he was unfit for duty while armed; and (3) failed to identify himself to the members of the [REDACTED] Police Department during the course of their investigation. The following is a summary of the relevant trial testimony.

Police Officer Lawrence testified that he first observed Respondent earlier that day standing near a picnic table on the grounds of the yacht club while conducting a bicycle patrol near the riverfront (T. 70, 71). He next observed Respondent at about 2130 hours when he entered the clubhouse of the yacht club and saw him standing behind a bar, at which Tyndal, Person 2 and Nicole were seated (T. 70). Lawrence addressed the individuals collectively, asking

whether anyone had heard or seen anything regarding shots being fired and a drone in the area (T. 63). Person 1 answered that there had indeed been a drone in the area and that she had thrown rocks at it (*Id.*). When Lawrence asked Person 1 where she had seen the drone, she replied that she had seen the drone in the area recently, and decided to throw rocks at it when she saw it again that day, feeling that her privacy had been invaded (T. 63-64).

According to Lawrence, Respondent confirmed that there had been a drone in the area, and that Person 1 had thrown rocks at it (T. 64-65). As he continued to engage Person 1 in conversation about the drone and her throwing rocks, Respondent appeared to become angry, motioning for her to stop talking and explicitly telling her to "shut up" (T. 65, 99). Lawrence estimated that he spoke with Respondent and Person 1 for 5-10 minutes. He further opined that Respondent was intoxicated, based upon the drink he had in his hand, his glassy eyes and "standoffishness" (T. 67-68). Armstrong explained that in his experience and training, "intoxicated individuals tend to hide the fact that they have been drinking" (T. 68). Lawrence conceded that he did not observe Respondent to have slurred speech or to be unsteady on his feet (T. 76-78).

At that point, Sergeant Kenan appeared and asked Lawrence whether he had obtained everyone's names. When Lawrence then asked Respondent and Person 1 for identification, they refused to provide any documentation (T. 100). According to Lawrence, when he asked Respondent for his name, Respondent replied, "You don't need my name; I don't have to give it to you" (*Id.*). After he requested the information again, Respondent provided his name, date of birth and address (*Id.*).

Lawrence and Sergeant Kenan then left the clubhouse and went down to the riverfront area to search for shell casings (T. 70). After finding none, they left the area and Lawrence went

to the precinct to write his report (*Id.*). While he was drafting his report, he learned from Sergeant Kenan that Respondent was a Member of Service and that Sergeant Kenan was notifying the Internal Affairs Bureau of their observations at the yacht club (T. 72, 92).

Sergeant Kenan testified that when he entered the clubhouse area, he saw Respondent, Person 1, Tyndal and Person 2 seated at the bar (T. 16). He asked Tyndal and Person 2 if they had seen anything and they both shook their heads no, then looked down at the bar (*Id.*, 35, 46). Sergeant Kenan asked Person 1 if she had seen anything, to which she claimed that no one had seen or heard anything but continued talking in a manner he described as babbling, leading him to form the belief that she was intoxicated (T. 35, 36, 46). According to Sergeant Kenan, Respondent had glassy eyes and appeared unsteady on his feet, leading him to form the belief that Respondent, too, was intoxicated (T. 17-18, 22). He observed Respondent for two to three minutes, and spoke with him for 10-15 seconds, before forming that belief (T. 40, 56). Sergeant Kenan conceded that he did not smell alcohol on Respondent during their interaction (T. 18, 34).

Sergeant Kenan then left the clubhouse, accompanied by Lawrence, and proceeded to the riverbank, where they examined the ground in search of shell casings from spent rounds (T. 22, 38). The search was negative and they concluded that the complaint of the discharge of a firearm was unfounded (*Id.*). Sergeant Kenan then called the Chief of the [REDACTED] Police Department to report his findings (T. 23, 24, 47). As he described his encounter with Respondent and the three others in the clubhouse to his Chief, he mentioned that he believed one or more persons were intoxicated (T. 48). Unprompted, the Chief asked him for their names, and asked if one of the individuals was named Calandra (T. 50). Sergeant Kenan asked Lawrence for the names of the individuals they had seen in the clubhouse and confirmed to the Chief that one of them was indeed named Calandra (T. 51, 54). The Chief then informed him that Calandra (Respondent)

was a Member of Service and directed him to notify the NYPD, specifically the Internal Affairs Bureau (T. 23, 24, 38, 48-49).

Lieutenant Thomas Devine, assigned to Bronx Investigations, testified that the Internal Affairs Bureau received a report on June 2, 2016, from Sergeant Keenan of the [REDACTED] Police Department that Respondent was suspected of misconduct, specifically firing gunshots at a drone (T. 108-109). The Duty Captain, then-Captain Ghonz, was assigned to the call out at approximately 2315 hours and proceeded to Respondent's home (T. 110-111). Captain Ghonz reportedly arrived at Respondent's home at approximately 0305 hours on June 3, 2016 (T. 111-112). After knocking on Respondent's door and not receiving a response, followed by several attempts to contact him by telephone, Captain Ghonz departed the area (T. 112). At approximately 0800 hours on June 3, 2016, Captain Ghonz interviewed Respondent at the 40th Precinct, where he found him fit for duty (T. 112-113).

On November 19, 2016, Respondent answered questions during an official Department interview. During this interview, he admitted that: (1) he was carrying his service weapon while at the yacht club on June 2, 2016; (2) he did not identify himself to the responding [REDACTED] police officers; and (3) he had consumed two beers (T. 115-116).

Sergeant Kenan was interviewed during the subsequent investigation and stated that he believed Respondent to be intoxicated at the time he encountered him on June 2, 2016, because of his glassy eyes and slurred speech (T. 117).

Anthony Tyndal testified that he is now a retired police officer from the [REDACTED] Police Department (T. 130). He was present in the [REDACTED] Yacht Club clubhouse on June 2, 2016, at about 2130 hours (T. 133-134). Tyndall acknowledged that he has been a friend of Respondent's

for approximately ten years and that they enjoyed a social relationship (T. 131-132, 140-141). According to Tyndal, he had been at the yacht club since 1600 hours that day, working on his boat with two other individuals. He worked on the boat for about two hours, assisted by Respondent and the two others until they retired to a picnic area. The men spent approximately 60-90 minutes in the picnic area before going inside the clubhouse. Tyndal estimated that he went inside the clubhouse at approximately 1800 hours. (T. 133-134).

Tyndal testified that he saw a drone at approximately 1800-1820 hours but did not observe Person 1 throwing rocks at it (T. 134). He also denied seeing anyone shoot at the drone (*Id.*).

Once inside the clubhouse, Tyndal had one to two beers with Respondent and Person 2 while watching a baseball game. Tyndal asserted that he was familiar with slurred speech, glassy eyes and an unstable gait as common signs of intoxication; in his opinion, Respondent exhibited none of those indicia (T. 139-140).

Tyndal recalled that there came a time when two [REDACTED] police officers, one who he described as wearing shorts and a golf shirt, and another identified as a sergeant, entered the clubhouse (T. 136). While Tyndal denied that either police officer directed any questions to him, he testified, "He might have said 'did you see anything outside,' and I said no, and that was it" (*Id.*). Tyndal acknowledged that while he was an active member of the [REDACTED] Police Department at the time of this incident, he felt no need to identify himself as such. He testified that he observed Person 1 in conversation with one of the police officers but claimed he could not hear what they were saying. Tyndal asserted that he had "no interest" in their discussion since he was not being investigated, and there was no need for any communication with the [REDACTED] police officers (T. 137-138). He later conceded that he did not want to have any interaction with

the police officers "unless they came to me because then I have to let my department know" (T. 152).

Tyndal acknowledged that Respondent provided his name, date of birth and address in response to the police officer's questions (T. 138). He further acknowledged that at one point, Respondent told Person 1 to stop talking and providing information (T. 139). Tyndal recalled that just prior to Respondent's admonition, Person 1 had been discussing "something about gravel and a drone" (T. 146-147). Tyndal estimated that the police officers were in the clubhouse for 15-20 minutes (T. 139). Once they departed the clubhouse, he remained for another five minutes before going home (T. 140).

Respondent testified that on June 2, 2016, he worked at the 40th Precinct from 0600 until 1400 hours (T. 154-155). When he left work, he rode his motorcycle to the [REDACTED] Yacht Club, arriving at approximately 1530 hours (T. 155). Respondent went to the boatyard, where he worked on his boat (*Id.*). Sometime after he arrived at the club, his girlfriend Person 1 appeared (T. 156). Respondent worked in the dock area, which is also near a set of picnic tables (T. 156-157).

At approximately 1800-1830 hours, Respondent observed a drone flying overhead (T. 158). He denied shooting at the drone or observing Person 1 throw rocks at it (*Id.*). After about ten minutes, Respondent left the picnic area to visit his friend's home, which was located within the grounds of the yacht club (*Id.*). After visiting his friend, he returned to the picnic table area for a short time, then went to the clubhouse at about 1900 hours (T. 159).

Respondent described entering the clubhouse and going to a bar area with a television set (*Id.*). He turned on the television, then went behind the bar to purchase beers for Tyndal and

Person 2 (T. 160). Respondent purchased himself a beer as well, which was in addition to a beer he consumed while standing in the picnic table area (*Id.*, 161).

About one hour later, Respondent went to the bathroom (T. 161). When he returned to the bar area, he observed two [REDACTED] Police Department officers inside the clubhouse speaking to Person 1 (T. 162). According to Respondent, he walked over to them and asked, "What's going on, what's up?" (*Id.*). He heard Person 1 tell the police officers, "Yeah, the drones were flying around. Those things are annoying . . . I was throwing rocks at it" (*Id.*). Respondent admitted that he told her, "Shut up; be quiet. Don't incriminate yourself" (T. 163). Lawrence then asked him, "Did you see the drone?" Respondent answered that he had. Lawrence asked him if had heard anything, to which Respondent replied that he had not (*Id.*).

Respondent conceded that he did not identify himself as a Member of Service because:

"Well, I didn't know anything happened. They didn't come looking for me, start investigating me. They asked the simple question was a drone flying around? Yeah, it was. I didn't know if they were investigating the drone. Maybe the drone fell out of the sky, hit a car. I don't know. They weren't investigating me for anything so what's the problem?"

(T. 163-164).

Respondent testified that Lawrence asked for his name, address, telephone number, and date of birth, all of which he provided (T. 164). He testified that he had no interaction with Sergeant Kenan and remained 6-10 feet away from the officers during his conversation with Lawrence (*Id.*, 165). Respondent admitted that he was armed at the time of the questioning and that no one asked whether he was a Member of Service (T. 165).

Respondent testified that he spent another 20 minutes at the clubhouse before departing to visit a friend, at whose home he remained overnight (T. 166). He claimed that his mobile telephone lost battery power at about 2000-2100 hours on June 2nd and that he was unable to

recharge it because he did not have his charger with him (*Id.*). According to Respondent, as he charged his mobile phone the next morning, he discovered that the Duty Captain was trying to contact him (T. 166-167). Respondent returned his call at approximately 0500 hours, left a voicemail message and proceeded to work, reporting for duty at approximately 0600 hours (T. 167).

Respondent eventually met with Captain Ghonz at approximately 0800 hours. According to Respondent, Captain Ghonz took him into the Commanding Officer's office and questioned him about the incident. He checked Respondent's firearm and declared that he did not find evidence of recent discharge; he further declared Respondent fit for duty. Later that day, investigators from Bronx Investigations appeared at Respondent's residence and inspected all of his firearms. Respondent testified that the investigators unloaded each weapon, and counted the bullets before declaring that there was no evidence of recent discharge (T. 167-168).

Respondent must be considered an interested witness, inasmuch as he is a party to this proceeding.

Unfit for Duty, Unfit for Duty While Armed

I find that the Department has failed to meet its burden by a preponderance of the relevant, credible evidence that Respondent was unfit for duty, as well as failing to meet its burden of proving that Respondent was unfit for duty while armed. There is no dispute that Respondent was armed at the time he encountered Sergeant Kenan and Lawrence, based upon his in-court admission. Similarly, there is no dispute that he consumed at least one beer prior to the encounter at the clubhouse and was drinking a second beer at the time of the meeting inside the clubhouse, again, based upon his admissions.

Nevertheless, the evidence offered by the Department to attempt to establish that Respondent was intoxicated fell short of the standard required for a finding of drunkenness based upon observation alone. Sergeant Kenan testified that he believed Respondent to be drunk based upon glassy eyes and apparently affected motor skills; he did not detect the scent of alcohol on his breath. Lawrence testified that he believed Respondent to be intoxicated because he had glassy, watery eyes; a drink in his hand; and a "very strong odor of alcohol beverage" about him.

Lawrence opined that he found Respondent "standoffish," further supporting his view that he was intoxicated since, based upon his experience and training, "intoxicated individuals tend to hide the fact that they have been drinking." Assuming Lawrence's proposition to be true, for the sake of argument, it would still hold no validity in this case since the observation of Respondent with a drink in his hand would render absurd any attempt by Respondent to hide the fact that he had been drinking.

While I credit the truthfulness of Sergeant Kenan and Lawrence's observations of Respondent, I do find that collectively, their assessments of his sobriety were, under the circumstances presented, speculative. I note that while they each observed Respondent to have glassy eyes and slurred speech, they disagreed upon whether they observed him to have a strong smell of alcohol about him. This discrepancy is significant because among the common indicia of intoxication, arguably the strongest evidence of the past consumption of alcohol would be the scent of alcohol emanating from the person suspected

Based upon the foregoing, I find Respondent Not Guilty of Specifications 1 and 2.

Failure to Identify Himself as a Member of Service

I find that the Department has failed to meet its burden of proof by a preponderance of the credible, relevant evidence that Respondent failed to properly identify himself as a Member of Service during the investigation conducted at the yacht club by the [REDACTED] Police Department.

An objective analysis of the circumstances of this encounter does not support its characterization as one of the scenarios which trigger the duty of a Member of Service to identify himself as such (*see e.g.*, P.G. 212-09 [Unusual Occurrence Reports]; P.G. 212-32 [Off Duty Incidents Involving Uniformed Members of the Service]; P.G. 221 20 [Confrontation Situations]).

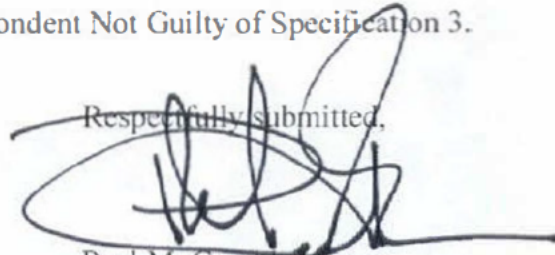
In this case, the [REDACTED] police were investigating a complaint of shots fired at a drone. When Lawrence entered the club house and asked about shots being fired at the drone, Person 1 was the first person who professed to have knowledge of it. The investigation focused on her and apparently never shifted to any of the other three persons present. Moreover, Lawrence's questions were general requests for information, such as "Did you hear something?" and "Did you see anything?"

While it is true that Respondent asked the [REDACTED] police officers "What's going on?" as they questioned his girlfriend, eventually telling her to stop talking, Respondent's conduct did not come close to crossing the line from that of a concerned bystander to Obstructing Governmental Administration. Although Respondent was known to the Chief of that department as a member of the NYPD, and presumably authorized to carry a firearm, neither Sergeant Kenan nor Lawrence were directed to investigate Respondent as a possible suspect. Even after Sergeant Kenan learned that Respondent was a Member of Service, neither officer apparently

saw the need to reopen their investigation on their own volition in view of that new information and question Respondent in a more pointed manner.

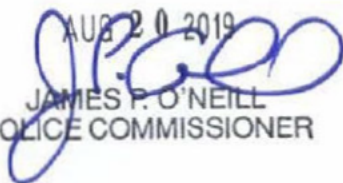
Based upon the foregoing, I find Respondent Not Guilty of Specification 3.

Respectfully submitted,

A handwritten signature in black ink, appearing to be "Paul M. Gamble", written over the text "Respectfully submitted,".

Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

AUG 20 2019

JAMES P. O'NEILL
POLICE COMMISSIONER

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